UMKC Impact & Translation Series

"Who Owns My IP?"

Helping you move your work beyond the university

Intellectual property (IP) ownership determines who controls how your work can be used, developed, and shared beyond the university.

In a university setting, that ownership can involve multiple stakeholders, including the institution, researchers, students, and funding agencies.

This whitepaper aims to clarify the key aspects of IP ownership for faculty researchers and graduate students at the University of Missouri-Kansas City (UMKC). For more specific information about IP ownership, please refer to the UM System Rules & Regulations, Chapter 100.020 - Invention and Patent Regulations.

UITS Whitepaper

This whitepaper is part of the **UMKC Impact & Translation Series (UITS)** - a set of short videos and supporting materials designed to help faculty think more clearly about how their work can move beyond the university and into real-world use.

The videos introduce core ideas. This document goes deeper on one of those ideas: **how intellectual property ownership works at UMKC.**

Why This Matters

As research begins to move beyond discovery and toward real-world use, questions about ownership become important.

- Who owns the intellectual property?
- What rights do you retain?
- How does ownership affect what happens next?

These are not just legal questions. They shape how your work can be developed, shared, and ultimately used outside the university.

University IP Policies and Employment Contracts

UMKC, like many universities, has clear policies regarding the ownership of inventions created within its environment. Typically, any invention developed using university resources or within the scope of an individual's employment is owned by the university. These stipulations are often included in the employment contracts of faculty and staff.

The university's intellectual property policies further reinforce this, ensuring that the institution can manage and commercialize the inventions developed within its facilities. The rationale behind this approach is to enable the university to fulfill its obligations under various research agreements, including those involving federal grants.

The Bayh-Dole Act

A significant factor in university IP ownership is the Bayh-Dole Act, a federal statute that allows universities to retain ownership of inventions made under federally funded research programs.

This legislation requires universities to report such inventions, manage their patents, and grant certain rights to the federal government. This framework is crucial because it standardizes the management of federally funded inventions, ensuring that they are utilized for public benefit while allowing universities to commercialize the technology.

This framework allows universities to take responsibility for moving federally funded innovations toward real-world use.

In practice, it ensures that promising discoveries are not left unused, and that there is a structured path for development, partnership, and impact.

Ownership for Faculty and Staff

For faculty and staff, the ownership of inventions is generally straightforward: ***if an invention is created within the scope of their duties or using university resources, it belongs to the university***. This policy covers inventions made during research activities, using university facilities, or developed with university financing.

Faculty members are required to disclose their inventions to the university so that the appropriate processes can begin.

At UMKC, two offices play distinct roles:

- **Office of Technology Transfer (OTT)** manages intellectual property protection, including patents and licensing
- **Office of Commercialization (OC)** supports the translation of research into real-world use through market understanding, partner engagement, and pathway development

This distinction is important. Protection enables optionality. Commercialization determines how that work moves forward.

Graduate Students and IP Ownership

Graduate student ownership depends on how the work is conducted and supported.

If a graduate student is:

- Funded through a grant
- Employed by the university
- Working within a faculty-led research project
- Using significant university resources

Then the resulting intellectual property is typically owned by the university.

If a student develops work independently, outside of employment and without significant use of university resources, they may retain ownership.

However, these distinctions are often not obvious. Many graduate research activities are tied to funding, lab infrastructure, and faculty direction.

When in doubt, it is important to clarify ownership early. This avoids confusion later, especially if the work begins to show potential for real-world use.

Undergraduate Students

Undergraduate students generally retain ownership of their work unless:

- They are employed by the university
- They are contributing to funded research
- They are using significant university-controlled resources beyond normal coursework

Most class projects and student-led work remain student-owned. However, once a project becomes part of formal research activity, ownership may shift.

Collaborative and Sponsored Research

Collaborative research, often involving multiple inventors from different institutions or companies, presents unique challenges in IP ownership. Clear agreements must be in place to define the rights of each party. The university's commercialization team assists in negotiating these agreements, ensuring that all contributors' rights are respected, and that the commercialization process can proceed smoothly.

Sponsored research, funded by external companies or organizations, also has specific IP terms. Generally, the university retains ownership but may grant licenses to the sponsor.

Understanding these terms early is critical.

Ownership and rights determine whether a partner can adopt, license, or invest in the work. Without clear agreements, even strong innovations can stall before reaching use.

Dispute Resolution and Waivers

Disputes over IP ownership can arise, particularly in complex collaborative environments.

UMKC has formal review processes to address questions of intellectual property ownership when they arise, typically involving the Office of Technology Transfer and university legal counsel.

Inventors who believe their invention falls outside the university’s claim can request a waiver or review. This process ensures that all parties have a fair opportunity to present their case and reach an equitable resolution.

In some cases, the university may decide not to pursue intellectual property protection. When this happens, ownership may be released to the inventor through a formal waiver process.

This typically occurs when:

- The commercial opportunity is limited
- Patent protection is unlikely
- The cost of protection outweighs potential value

If ownership is waived, the inventor assumes full responsibility for:

- Patent costs
- Development expenses
- Use of facilities and resources

At that point, the work moves outside the university system and must be advanced independently or through external support.

Guiding Question:

Who controls your work, and how does that affect what can happen to it next?

Conclusion

Ownership is not just a legal detail. It is a structural factor that determines how your work can move forward.

At UMKC, ownership policies are designed to:

- Enable protection of promising work
- Create pathways for development and use
- Ensure compliance with funding requirements

Understanding these policies helps you make informed decisions about when to disclose, how to engage, and what options are available.

If your work has the potential to create impact beyond the university, ownership is one of the first pieces that needs to be clear.

For specific questions or further clarification, contacting the UMKC Office of Technology Transfer is recommended.

Contact Information:

UMKC Office of Technology Transfer
Director: Eric W. Anderson, JD, MBA
Phone: 816-235-5091
Email: ericwa@umkc.edu

For additional information and guidance, the relevant sections of the university's policies and agreements, such as the Collected Rules and Regulations (CR&R) 100.020, should be reviewed.

Resources & Contacts

UMKC Office of Commercialization
Director: Jeff Blackwood, MBA
📍 Website: www.umkcinnovates.com/tech-commercialization
📧 Email: techcomm@umkc.edu
📞 Phone: 816-235-6373

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